IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-515

CP (CAA) No.-60/230/232/ND/2022

IN THE MATTER OF:
Digi Content Ltd. & Ors with HT Media Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 04.11.2022**

CORAM:
JUSTICE TELAPROLU RAJANI,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. Abhinav Vashisht, Sr. Adv. with Ms. Pooja Mahajan, Ms. Arveena Sharma, Ms. Srishti Kapoor, Advs.
For the RD	: Ms. Shankari Mishra, Adv.
For the IT Dept.	: Ms. Vibhooti Malhotra, Mr. Shailendera Singh, Mr. Vijay Deora

ORDER

We have heard the Counsel for the Appellant as well as the Counsel for the RD and Proxy Counsel for the Income Tax Department. The report of OL has come on record and he doesn't have any objections. The Counsel for the Income Tax Department has submitted that there are no tax dues against the Transferor Company. However, there are tax dues against the Transferee Company.

The Counsel for the Appellant submitted that he will file within the next two days an undertaking-cum-affidavit with respect to the Transferee Company that if there are tax dues now or in the future, they will be pay in accordance with law. The Counsel for the RD submitted that they have made certain observations in the report to which the Counsel for the Appellant has replied. We have heard the arguments in the matter. **Therefore, order in this matter is reserved.**

-Sd/-

(RAHUL BHATNAGAR)
MEMBER (T)

-Sd/-

(JUSTICE TELAPROLU RAJANI)
MEMBER (J)

Md Saddam